

**BEFORE THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS
OF THE STATE OF IOWA**

IN THE MATTER OF Giovanni Demezier License No. 092633 RESPONDENT	CASE NOs.: 24-0325 & 24-0485 COMBINED NOTICE OF HEARING, STATEMENT OF CHARGES, AND EMERGENCY ADJUDICATIVE ORDER
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COMES NOW the Iowa Board of Behavioral Health Professionals (“Board”) and files this Notice of Hearing, Statement of Charges, and Emergency Adjudicative Order against Giovanni Demezier (“Respondent”), pursuant to Iowa Code sections 17A.12(2), 17A.18(3), 17A.18A, 272C.3(1)(e), and 481 Iowa Administrative Code (“IAC”) chapter 506.29.

A. TIME, PLACE AND NATURE OF HEARING

1. **Hearing.** A contested case hearing shall be held by telephone conference starting at 9:00 a.m. on July 1, 2025. In order to participate, you must dial 855-841-8570 at the time of the hearing. If you have trouble connecting, you may call 515-281-6468 or email adminhearings@dia.iowa.gov.

If you wish to request that this matter be converted to an in-person or video hearing, you may make this request at the earliest opportunity by contacting Administrative Hearings Division at adminhearings@dia.iowa.gov.

2. **Scheduling Conference.** Any party may request a prehearing conference in accordance with 481 IAC ch. 506.17.

3. **Answer.** Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you are permitted by 481 IAC ch. 506.12(2) to file an Answer. Should you file an Answer, please note whether you will request a continuance of the date and time of

the hearing pursuant to 481 IAC ch. 506.18.

4. **Filing of Pleadings**. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Health Professionals, 6200 Park Avenue, Ste. 100, Des Moines, Iowa 50321, by email to lacy.hepp@dia.iowa.gov, or electronically using the Administrative Electronic Document Management System (adminhearings.iowa.gov/efile/).

5. **Presiding Officer**. The Iowa Board of Behavioral Health Professionals voted unanimously to delegate this matter to the Administrative Law Judge from the Administrative Hearings Division of the Department of Inspections, Appeals and Licensing, to hear this disciplinary matter as well as any pre-hearing matters which may be filed by the parties. The Administrative Law Judge shall serve as presiding officer at the contested case hearing, as well as make initial rulings on prehearing matters.

6. **Prehearing Conference**. Any party may request a prehearing conference to discuss evidentiary issues related to the hearing in accordance with 481 IAC ch. 506.17.

7. **Hearing Procedures**. The procedural rules governing the conduct of the hearing are found at 481 IAC ch. 506. At the hearing, you may appear personally or be represented by legal counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at hearing. If you need to request an alternative time or date for hearing, you must comply with the requirements of 481 IAC ch. 506.18. The hearing may be open to the public or closed to the public at the discretion of the Respondent.

8. **Prosecution**. The Office of the Attorney General is responsible for representing the public interest (the State) in this proceeding. Pleadings shall be filed with the Board and copies

should be provided to counsel for the State at the following address: Lindsey L. Browning, Assistant Attorney General, Office of the Iowa Attorney General 1305 E. Walnut Street, 2nd Floor, Des Moines, Iowa 50319.

9. **Communications.** You may not contact Board members in any manner, including by phone, letter, facsimile, in person or e-mail, about this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and an opportunity to participate, such as at the hearing or in pleadings you file with the Board and serve upon all parties in the case. You may contact Tony Alden, Board Executive, Iowa Board of Behavioral Health Professionals, at 515-281-4401 or Tony.Alden@dia.iowa.gov, or Assistant Attorney General Lindsey L. Browning at 515-281-3441 or lindsey.browning@ag.iowa.gov.

B. LEGAL AUTHORITY AND JURISDICTION

10. **Iowa License.** Respondent maintains an Iowa Mental Health Counselor License #092633 that was originally issued on May 21, 2021 and is set to expire on September 30, 2026.

11. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code § 154D and 481 IAC ch. 506.29.

12. **Legal Authority.** If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code §§ 147.55 and 272C.3, and 481 IAC ch. 504.

13. **Default.** The Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code §17A.12(3) and 481 IAC ch. 506.2.

C. STATEMENT OF CHARGES

COUNT I

14. Respondent is charged under 481 IAC ch. 504.2(27) for unethical conduct, specifically improper sexual contact with or making suggestive, lewd, lascivious or improper remarks or advances to a patient, client or coworker.

COUNT II

15. Respondent is charged under 481 IAC ch. 893.1(1) for failure to comply with the national association's code of ethics.

COUNT III

16. Respondent is charged under 481 IAC ch. 893.1(2) for engaging in sexual activities or sexual contact with a client, regardless of whether such contact is consensual or nonconsensual.

C. FINDINGS OF FACT

17. **Practice Setting**. Respondent is an Iowa licensed mental health counselor practicing in the area of Davenport, Iowa, during the time period relevant to these allegations.

18. **Factual Circumstances**. Respondent began providing counseling services to patient T.S. in or around January 2024. The counseling sessions occurred in the patient's home and at some point during the counseling relationship, Respondent initiated a sexual relationship with the patient. The patient states that after having sexual relations with Respondent, Respondent told her that he needed to switch her from counseling to "coaching" services and had the patient sign a new contract for "coaching" services, implying that this made their sexual relationship permissible. Respondent further stated to that it was "normal" to engage in sexual relationships with clients and that he "does it all the time." Patient T.S. became pregnant and believes Respondent is the father. Respondent provided money to the patient to terminate the pregnancy but it was too late to terminate when the patient discovered she was pregnant. Respondent was

interviewed and admitted to having sexual contact with patient T.S.

Respondent began counseling services with a second client M.R. via telehealth sessions in 2021. Approximately two years into the counseling relationship, Respondent introduced the idea of switching patient M.R. from counseling to “coaching” claiming it would be more affordable. The patient was switched off the telehealth platform initially used and became a client of Respondent’s private practice on August 2, 2023, after which Respondent encouraged the patient to communicate with him more frequently and via his personal cellphone. Respondent assured the patient that the rules were different with “coaching” sessions. Patient M.R. alleges that on October 28, 2024, Respondent initiated a sexual conversation with her via text message. The patient felt scared, trapped, and intimidated by the situation and the sexual comments made by Respondent. She terminated contact with Respondent via email message on October 31, 2024.

D. SETTLEMENT

19. This matter may be resolved by settlement agreement. The procedural rules governing the Board’s settlement process are found at 481 IAC ch. 506.35. If you are interested in pursuing settlement of this matter, please contact the Assistant Attorney General identified above.

E. PROBABLE CAUSE FINDING

20. On May 27, 2025, the Iowa Board of Behavioral Health Professionals found probable cause to file this Notice of Hearing and Statement of Charges and Emergency Adjudicative Order.

F. CONCLUSIONS OF LAW

21. Iowa Code § 154D.5 states in pertinent part,

The license of a behavior analyst, an assistant behavior analyst, a marital and family therapist, or a mental health counselor shall be revoked if the board finds that the licensee engaged in sexual activity with a client as determined by board rule. The revocation shall be in addition to any other penalties provided by law.

22. Additionally, pursuant to statute, the Board may take emergency action “in a situation involving an immediate danger to the public health, safety, or welfare requiring immediate agency action.” Iowa Code § 17A.18A(1).

23. This Order is effective when issued. Iowa Code § 17A.18A(4).

G. ORDER

IT IS THEREFORE ORDERED:

A. The Board finds:

- a. Respondent has engaged in sexual contact with a client and engaged in unethical conduct including improper sexual behavior toward a second client.

B. For the foregoing reasons, the Board finds the Respondent is an immediate danger to the public health, safety and welfare.

C. Accordingly, Respondent’s Iowa mental health counselor license shall be IMMEDIATELY SUSPENDED pending a hearing on this matter.


Chairperson – Aaron Culley
Iowa Board of Behavioral Health Professionals

Copy to:
Lindsey L. Browning
Assistant Attorney General
Office of the Iowa Attorney General
1305 E. Walnut Street, Ste. 100
Des Moines, Iowa 50319
Lindsey.browning@ag.iowa.gov

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).